

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Moreover, a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court*, (1997) 58 Cal. App. 4th 1403, 1410, noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “Failure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the Court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiffs’ failure to timely is deemed to be their consent to the granting of the motion for attorney’s fees and costs.

Ruling

1. Defendant’s Motion for Attorney’s fees and Costs as prevailing Defendants pursuant to Cal. Code of Civ. Proc. § 425.16(c) is granted.
2. Plaintiffs and their attorney, Jonathan Borstein, Bornstein & Bornstein Law Group, shall pay the amount of \$101,340.81 to Defendants no later than thirty (30) days from the date of this hearing.
3. Defendant’s shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of the hearing, attaching a copy of the tentative ruling.

12. 9:00 AM CASE NUMBER: C25-01017

CASE NAME: STEVEN KENT VS. RICHARD KENT

***HEARING ON MOTION IN RE: TO DISQUALIFY CAROLYN CAIN AS DEFENSE COUNSEL DUE TO HER STATUS AS A WITNESS AND CONFLICT OF INTEREST**

FILED BY: KENT, STEVEN JAMES

TENTATIVE RULING:

This motion was vacated on February 24, 2026, at the request of the Plaintiff. No appearance is required at the hearing on February 25, 2026.

13. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WONG, WENDY, MD

TENTATIVE RULING:

Before the Court is a demurrer by defendants Wendy Wong, M.D. and Golden State Orthopedics to plaintiff’s complaint. For the reasons set forth, the general demurrers to the second and third cause

of action of the complaint are **overruled**, and the general demurrer to the fourth cause of action is **sustained, with leave to amend**, as set forth below.

Background

Plaintiff alleges she underwent a total knee replacement performed by defendant Wendy Wong, M.D. at Golden State Orthopedics in Walnut Creek. (Compl. ¶ 11.) She alleges that in addition to placing a Zimmer Biomet knee replacement implant, Dr. Wong placed a Zimmer Biomet Persona IQ implant without her consent. (Compl. ¶ 11.) The Persona IQ implant is an electronic device with a battery and sensors used with the Mymobility Zimmer Biomet patient care app. (Compl. ¶ 13.) She alleges that implanting the additional electronic device caused an additional, unauthorized "surgical insult" to plaintiff's bone which would not have been injured if the Persona IQ device had not been implanted. (Compl. ¶¶ 13, 14.) Plaintiff alleges she has been harmed by the implantation of the Persona IQ device, that she has suffered injury to her physical and mental health, as well as pain and suffering. (Compl. ¶¶ 14, 15.)

Zimmer, Inc. has now appeared in the action as the true defendant, stating that it was erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. The Court refers to that defendant as "Zimmer" in this ruling.

Standards Governing Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (See also *City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.)

The Court is limited to consideration of the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Questions of fact cannot be decided by the Court on demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 ["In considering the merits of a demurrer, 'the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation.]' [Citation omitted.]"].)

Generally, a complaint is sufficient if it pleads "ultimate" facts. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) "Ultimately, the complaint is sufficient if 'the adversary has been fairly apprised of the factual basis of the claim against him.' [Citations, internal quotations omitted.]" (*Randall v. Ditech Financial, LLC* (2018) 23 Cal.App.5th 804, 810.) Statutory causes of action, however, must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (See also *Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co., supra*, 19 Cal.4th at 39.)

Analysis

Plaintiff alleges causes of action against Dr. Wong and Golden State for professional negligence (1st C/A), failure to obtain informed consent (2nd C/A), medical battery (3rd C/A), and common law and statutory invasion of privacy (4th C/A). Defendants Dr. Wong and Golden State generally demur to the second through fourth causes of action on the ground the complaint does not allege facts sufficient to state those causes of action.

A. Failure to Obtain Informed Consent (2nd C/A)

In addition to the allegations set forth above, Plaintiff alleges in her second cause of action that she was not informed of the nature, purpose, and potential risks of implanting the Persona IQ electronic device and its ongoing transmission from her body, that she would not have consented to the implantation of the device had she been informed, that defendants breached their duty to Plaintiff to disclose material information necessary for Plaintiff to make an informed decision about her medical care, and that she has suffered severe injuries as a result. (Compl. ¶¶ 19-22.) Defendants contend to state a cause of action for failure to obtain informed consent, Plaintiff must allege that an undisclosed complication occurred that the physician had a duty to disclose and obtain the patient's consent to the risk. They contend the complaint does not allege Plaintiff suffered any undisclosed complication or injury from defendants' implanting the Persona IQ electronic patient monitoring device.

" 'The elements of a cause of action for breach of fiduciary duty are: (1) [the] existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.' [Citation omitted.] '[A] physician has a fiduciary duty to disclose all information material to the patient's decision,' when soliciting a patient's consent to a medical procedure. [Citations omitted.] A cause of action premised on a physician's breach of this fiduciary duty may alternatively be referred to as a claim for lack of informed consent. [Citation omitted.]" (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1164 [emphasis added, addressing claim in the context of a motion for summary adjudication].)

In addressing the duty of disclosure, the California Supreme Court explained, "In sum, the patient's right of self-decision is the measure of the physician's duty to reveal. That right can be effectively exercised only if the patient possesses adequate information to enable an intelligent choice. The scope of the physician's communications to the patient, then, must be measured by the patient's need, and that need is whatever information is material to the decision. Thus, the test for determining whether a potential peril must be divulged is its materiality to the patient's decision. [Citation omitted.]" (*Cobbs v. Grant* (1972) 8 Cal.3d 229, 245.) (*See also Arato v. Avedon* (1993) 5 Cal.4th 1172, 1186 ["Rather than mandate the disclosure of specific information as a matter of law, the better rule is to instruct the jury that a physician is under a legal duty to disclose to the patient all material information--that is, 'information which the physician knows or should know would be regarded as significant by a reasonable person in the patient's position when deciding to accept or reject a recommended medical procedure'--needed to make an informed decision regarding a proposed treatment." (Emphasis added.).])

Plaintiff has adequately alleged facts to state a cause of action for breach of fiduciary duty or lack of informed consent to the implantation of the Persona IQ device. She has alleged that the existence, nature, and purpose of the electronic device that would be implanted in addition to the total knee replacement implant was material information to her, that defendants had a duty to disclose that information, and that had she been informed of this material information, she would not have

consented to the implant of that device. She has alleged facts supporting that the information was material to her decision regarding the nature and scope of the knee replacement procedure, that defendants did not disclose the material information to her before implanting the device, and that she has been injured physically and mentally as a result of the unconsented-to implant of the electronic transmitting device in her body. (Compl. ¶¶ 11, 13, 14, 19-22.) Plaintiff also contends that the allegations are sufficient to plead that she was not informed of risks associated with the implantation of the Persona IQ device, including risks regarding the smart-tracking functionality of the device and that there would be ongoing transmission of data from Plaintiff's body, and that implanting the device involved an additional "surgical insult" to her bone. (Compl. ¶¶ 13, 19.) In their totality, the allegations are sufficient to state a claim for lack of informed consent.

The general demurrer to the second cause of action is **overruled**.

B. Medical Battery (3rd C/A)

The allegations of the complaint impliedly concede that Plaintiff consented to the total knee replacement surgery. Plaintiff, however, alleges that she did not consent to the implantation of the Persona IQ electronic transmitting device, and that the implantation of that device without her prior knowledge or consent constituted a "substantial deviation from the procedure Plaintiff consented to," that "Defendants' actions exceeded the scope of Plaintiff's consent and involved an unauthorized physical intrusion into her body." (Compl. ¶ 25.)

A plaintiff states a cause of action for medical battery by alleging the plaintiff was a patient who consented to one type of medical treatment or procedure, and the doctor performed a "substantially different treatment for which consent was not obtained." (*Cobbs, supra*, 8 Cal. 3d at 239.) In that circumstance, there is a "clear case of battery." (*Id.*) "When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present." (*Cobbs, supra*, 8 Cal.3d at 240.)

Defendants contend that implanting the Persona IQ device was part of the knee replacement surgery to which Plaintiff consented and that the facts alleged do not show the implantation of the electronic monitoring device was a different treatment or substantial deviation from the procedure to which Plaintiff consented. To support their argument, Defendants cite *Conte v. Girard Orthopedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260. In that case, the plaintiff agreed to the surgical repair of a shoulder by placement of a screw, but the surgeon concluded during the course of surgery that repairing the shoulder with the screw would have caused more damage in his medical judgment. (*Id.* at 1268-1269 ["We see no policy reason to extend the law of battery to these circumstances where the treatment was within the bounds of Conte's consent. Kimball exercised his medical judgment in deciding not to install a fixation device, concluding that such a procedure would make the brittle bone disintegrate. If doctors were subject to liability for battery in such situations, it would deter them from freely exercising their medical judgment. Conte's recourse properly lay in a medical malpractice action, not a medical battery cause of action."].)

The Court in *Conte, supra*, 107 Cal.App.4th 1260 relied on by Defendants explained, "A typical medical battery case is where a patient has consented to a particular treatment, but the doctor performs a treatment that goes beyond the consent. 'When an action is based upon the theory of surgery beyond consent, the gist of such action is the unwarranted exceeding of the consent. This is a theory

of technical battery.' [Citation omitted.] . . . [¶] A doctor may not act beyond the patient's authorization except in life- or health-threatening situations." (*Id.* at 1267, 1268 [emphasis added].) "The law presumes that '[w]hen the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present.' [Citation omitted.]" (*Dennis v. Southard* (2009) 174 Cal.App.4th 540, 544.)

An alternative theory of medical battery involves conditional consent to the procedure. "There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's violation of the condition. [Citation.]" (*Conte, supra*, 107 Cal.App.4th at 1269 [holding conditional consent did not apply in that case, as there was no evidence of an express condition imposed on the procedure by the patient].)

Defendants argue in their memorandum, without citation to any authority, that installing the Persona IQ implant was within the scope of Plaintiff's consent to the knee replacement and that its installation (without Plaintiff's knowledge or consent) was justified because "the intention was to monitor recovery." (MPA ISO Dem. p. 5, ll. 5-6.) Defendants have not cited any case law addressing whether the implantation of a "smart" electronic monitoring device requiring a separate incision into the bone is part of a knee replacement procedure or is a "substantially different treatment" from the treatment to which the patient consented or providing definitive guidance for the Court to make that determination as a matter of law based on the allegations of the complaint.

Therefore, on this record, the Court concludes that the issue of whether implanting the electronic patient monitoring device that would transmit data from Plaintiff's body was a substantial deviation from the procedure to which Plaintiff consented is one of fact. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669 [reversing order sustaining demurrer to battery cause of action, stating "the nature of the contact between plaintiff and Dr. Shin, and whether that contact was within the scope of plaintiff's consent, is a factual question for a finder of fact to decide."].) (*See also Kaplan v. Mamelak* (2008) 162 Cal.App.4th 637, 645-647 [concluding the trial court erred in sustaining demurrers to plaintiff's battery cause of action when surgeon, stating that without guidance in published case law relevant to the procedures in question, the issue of whether a medical procedure is substantial different from the procedure the patient authorized " is a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer."].) The arguments made by defendants raise issues of fact which cannot be resolved on demurrer, particularly in the face of Plaintiff's allegations that the device is a separate electronic device from the knee replacement hardware that was implanted, that she was not informed that the electronic device with the ability to transmit data would be installed, and that she did not consent to having the Persona IQ implanted.

The demurrer to the third cause of action is **overruled**.

C. Invasion of Privacy (4th C/A)

Plaintiff's fourth cause of action alleges invasion of privacy in violation of the common law and Civil Code section 56.10, part of the California Medical Information Act ("CMIA"). Plaintiff alleges that she had a reasonable expectation of privacy in decisions regarding her body and a right to bodily autonomy. (Compl. ¶ 32.) She alleges the implantation of the Persona IQ device with the ability to

collect and transmit data from inside her body without prior disclosure to her and her consent violated her right to privacy and was an intentional intrusion into her private affairs and bodily integrity. (Compl. ¶¶ 33, 34.) She alleges the unauthorized implantation of the Persona IQ device constitutes a serious invasion of her autonomy and bodily privacy that would be highly offensive to a reasonable person. (Compl. ¶ 35.) She alleges that Dr. Wong and Golden State also violated the CMIA by obtaining, using and "attempt[ing] to disclose" Plaintiff's medical information without her written authorization in violation of Civil Code section 56.10(a).

1. Civil Code Section 56.10

Civil Code section 56.10 provides that a health care provider or contractor "shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization, except as provided in subdivision (b) or (c)." (Civ. Code § 56.10(a).) Civil Code section 56.05(j) defines "medical information" as any individually identifiable information, in electronic or physical form, in possession of or derived from a provider of health care, health care service plan, pharmaceutical company, or contractor regarding a patient's medical history, mental health application information, reproductive or sexual health application information, mental or physical condition, or treatment. 'Individually identifiable' means that the medical information includes or contains any element of personal identifying information sufficient to allow identification of the individual, such as the patient's name, address, electronic mail address, telephone number, or social security number, or other information that, alone or in combination with other publicly available information, reveals the identity of the individual." (Civ. Code § 56.05(j)(1) [emphasis added].)

a. Medical Information

The invasion of privacy Plaintiff alleges is the implantation of the device with tracking capability that is "capable of collecting and transmitting data" from her body. She alleges the data that can be collected, stored, and transmitted is "individualized data related" to her physical condition and treatment (Compl. ¶ 37), but the data must also be "individually identifiable" to be "medical information" under the CMIA. The data must also include, or in combination with other publicly available information, "reveal[] the identity of the individual." (Civ. Code § 56.05(j)(1) [emphasis added].) Plaintiff does not allege sufficient facts to allege that the "data" that can be collected and transmitted is "medical information" as defined in the CMIA. Such an allegation is essential to allege with specificity a statutory claim. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) If the data is not "medical information" as defined in Civil Code section 56.05(j)(1), there is no violation of the CMIA.

b. Disclosure

In addition, Plaintiff alleges only that the implanted device is capable of transmitting data, but she does not allege that any data was actually transmitted or disclosed to anyone. Cases construing the CMIA hold that to qualify as a breach of the provisions of this statute, the medical information must have actually been read by an unauthorized person. (*Sutter Health v. Superior Court* (2014) 227 Cal.App.4th 1555, 1557.) (*See also Regents of University of California v. Superior Court* (2013) 220 Cal.App.4th 549, 570 [holding demurrer to CMIA cause of action should have been sustained, where thief stole encrypted hard drive with patient information, and the plaintiff could not "allege her

medical records were, in fact, viewed by an unauthorized individual.".) As the Court stated in *Sutter Health*, "without an actual confidentiality breach, a health care provider has not violated section 56.101 and therefore does not invoke the remedy provided in section 56.36. . . . [¶] [S]ection 56.36 provides remedies when a health care provider has 'negligently released confidential information or records concerning [the plaintiff] in violation of this part . . . ' (§ 56.36, subd. (b), italics added.) For the reasons given, there is no 'negligent[] release[] . . . in violation of [the Confidentiality Act],' if there is no actual breach of confidentiality. Because Sutter Health has not negligently released information or records in violation of the Confidentiality Act, there is no remedy." (*Id.* at 1555, 1558.)

This interpretation of the CMIA determination is also supported by *Vigil v. Muir Medical Group IPA, Inc.* (2022) 84 Cal.App.5th 197. In *Vigil*, a patient filed a class action lawsuit against an independent medical association ("IPA"), a medical group of doctors whose former employee stole a spreadsheet listing approximately 5,400 patients with certain personal and medical information. (*Id.* at 205-206.) The Court of Appeal affirmed an order which denied class certification in part because an individualized determination would have to be made for each class member as to whether their specific personal and medical information had actually been viewed in order for that class member to have a claim for breach of confidentiality under CMIA. (*Id.* at 213 ["Based on the statute's plain language, we agree with *Sutter Health* that a breach of confidentiality under the CMIA requires a showing that an unauthorized party viewed the confidential information."].)

Regents, Sutter Health and *Vigil* addressed Civil Code sections 56.101 and 56.36(b), which address the negligent release of confidential patient information and the remedies provided for that violation, rather than Civil Code sections 56.10(a) and 56.36(c)(1) which address violation and remedies based on negligent disclosure of confidential patient information. Nevertheless, the reasoning of the decisions supports that a breach of confidentiality based on negligent disclosure of medical information also requires a showing a third party viewed the information. As the cases explain, the injury to the plaintiff the CMIA is intended to address is the breach of confidentiality which, based on the meaning of the term confidentiality, only occurs if someone has actually viewed the medical information. (*Vigil, supra*, 84 Cal.App.5th at 213 ["Thus, under the ordinary meaning of 'confidential,' the confidential nature of information is not breached unless the information is reviewed by unauthorized parties. This construction is consistent with the purpose of the CMIA to protect patients' privacy."]; *Sutter Health, supra*, 227 Cal.App.4th at 1557 ["No breach of confidentiality takes place until an unauthorized person views the medical information. It is the medical information, not the physical record (whether in electronic, paper, or other form), that is the focus of the confidentiality Act. While there is certainly a connection between the information and its physical form, possession of the physical form without actually viewing the information does not offend the basic public policy advanced by the Confidentiality Act."].)

Statutory causes of action must be pleaded with particularity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) Plaintiff alleges defendants "attempted to disclose" her medical information, not that they disclosed her medical information which is what Civil Code section 56.10 prohibits. (Compl. ¶ 38 [emphasis added].) Plaintiff alleges that Zimmer personnel were involved in the surgical procedure, but she does not allege that they were not authorized to be involved, only that she did not authorize the implantation of the Persona IQ device. (Compl. ¶¶ 13, 31.) The complaint does not allege that Dr. Wong and Golden State violated the CMIA by disclosing

Plaintiff's medical information to Zimmer, as the manufacturer or distributor of the medical devices being implanted during the surgery, and she expressly alleges Zimmer personnel were "assisting with the surgical procedure." (Compl. ¶ 24 [incorporated into fourth cause of action by Compl. ¶ 30].) Based on the authorities cited in defendants' reply, it is not clear that such disclosure would violate the CMIA and/or that Plaintiff did not consent to Zimmer being involved in the knee replacement surgery and obtaining her medical information as a result based on its device was being implanted in her body. (Civ. Code § 56.10(c); 45 C.F.R. 164.506(c)(2) [disclosure "for treatment activities of a healthcare provider"].)

Rather, Plaintiff alleges after the surgery, Zimmer personnel contacted her to activate the tracking functionality of the device. (Compl. ¶¶ 13, 31.) By implication she declined, and she does not allege that the tracking was actually activated or that any of her medical information from the electronic monitor was disclosed to Zimmer. (Compl. ¶¶ 13, 31.) Reading the allegations of the complaint as a whole, the implication of the allegations is that the device was not activated and that her medical information was not actually disclosed to Zimmer, based on the more specific allegation in paragraph 38 of the complaint that defendants "attempted" to disclose her medical information. (Compl. ¶ 38.) Nevertheless, if Plaintiff can truthfully allege facts showing the unauthorized disclosure of her medical information to Zimmer or someone else, she may be able to allege sufficient facts to state this cause of action.

Without additional facts or clarification of the facts alleged, the allegations are not sufficient to allege a violation of Civil Code section 56.10(a) based on unauthorized disclosure of Plaintiff's medical information.

2. Common Law Intrusion

"A privacy violation based on the common law tort of intrusion has two elements. First, the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy. Second, the intrusion must occur in a manner highly offensive to a reasonable person." (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 286.) The California Supreme Court in *Hernandez* explained, "As to the first element of the common law tort, the defendant must have 'penetrated some zone of physical or sensory privacy . . . or obtained unwanted access to data' by electronic or other covert means, in violation of the law or social norms. [Citations omitted.]" (*Id.* at 286.) "The second common law element essentially involves a 'policy' determination as to whether the alleged intrusion is 'highly offensive' under the particular circumstances. [Citation omitted.] Relevant factors include the degree and setting of the intrusion, and the intruder's motives and objectives. [Citations omitted.] Even in cases involving the use of photographic and electronic recording devices, which can raise difficult questions about covert surveillance, 'California tort law provides no bright line on ["offensiveness"]; each case must be taken on its facts.' [Citation omitted.]" (*Id.* at 287.) (See also *Sanders v. American Broadcasting Companies* (1999) 20 Cal.4th 907, 914, 916 cited by Plaintiff.)

Defendants cite *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, which addressed a claim for violation of the right to privacy under the California Constitution, not the common law tort of intrusion, though the standards set for invasion of the right to privacy under the California Constitution has standards similar to common law intrusion. (*Id.* at 27.) "[A] plaintiff alleging an

invasion of privacy in violation of the state constitutional right to privacy must establish each of the following: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy. [¶] Whether a legally recognized privacy interest is present in a given case is a question of law to be decided by the court. [Citation omitted.] Whether plaintiff has a reasonable expectation of privacy in the circumstances and whether defendant's conduct constitutes a serious invasion of privacy are mixed questions of law and fact. If the undisputed material facts show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law." (*Id.* at 39-40 [emphasis added].)

The facts in which *Hernandez* and other decisions on common law intrusion arise are distinguishable from those alleged to support the intrusion claim here. In *Hernandez*, summary judgment was held properly granted to an employer who had installed a hidden camera in a shared office because the employer had learned of after-hours access to the internet on a computer in the office. The employer ran a home for abused children, the internet access involved accessing pornography, and employees were not informed the hidden camera had been installed. The Court held the first element was satisfied, but not the second element of a highly offensive intrusion and serious invasion of privacy under the circumstances. Notably, actual surveillance occurred in that case; the camera recorded employees in their workspace in which they had an expectation of privacy.

Similarly, in *Sanders* cited by Plaintiff, a television reporter covertly videotaped the plaintiff's conversations with a hidden camera, which was held to support a common law intrusion claim. In *Hill*, the California Supreme Court reversed a permanent injunction banning a national collegiate association's drug-testing program which disclosed the results of athletes' urine screenings for banned drugs, concluding there was no serious invasion of the right to privacy since athletes were voluntarily participating in athletic programs, and the information was being gathered for the legitimate purpose of protecting the integrity of competition and the health and safety of athletes.

Plaintiff alleges there was a physical intrusion into a zone of privacy (her body) by the implantation of an electronic device capable of transmitting data from inside Plaintiff's body. While the implantation of the device capable of providing medical data may arguably meet the first element of the intrusion claim, the allegations of the complaint, in light of the case law on intrusion, do not meet the second element. Plaintiff has not alleged that the Persona IQ was ever activated or that any information from her body was ever captured by the device or transmitted, unlike the cases cited above in which hidden devices were installed, and information was recorded and viewed by persons outside the plaintiff's zone of privacy.

Plaintiff has not cited any case where the mere existence of a hidden monitoring, eavesdropping, or video device that is not activated or does not result in the capture of private information has been held enough to state a claim for common law intrusion. The general demurrer to the fourth cause of action is therefore **sustained, with leave to amend**, as this is the first time the Court has reviewed the sufficiency of the allegations of the complaint, and Plaintiff may be able to allege additional facts to support the claims.

In granting leave to amend, the Court notes that the fourth cause of action in effect alleges under one heading **two distinct causes of action**, one based on a statutory violation with specific elements

supplied by the statute, and one under the common law with different elements set forth in the case law. If Plaintiff files an amended complaint alleging these claims, the claims should be pleaded in separate causes of action. (See Cal. R. Ct., Rule 2.112.)

14. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: ZIMMER, INC.

TENTATIVE RULING:

Before the Court is a demurrer to plaintiff's complaint by defendant Zimmer, Inc., erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. For the reasons set forth, the Court rules as follows: (a) demurrer to second cause of action – **overruled as moot**; (b) demurrer to third cause of action – **overruled**; and (c) demurrer to fourth cause of action – **sustained, with leave to amend**.

Background

Plaintiff alleges that defendant Zimmer Biomet supplied medical devices and hardware to hospitals and surgeons. (Compl. ¶ 4.) She alleges Zimmer Biomet Corporate Services "operates as a corporate services entity for the Zimmer Biomet family of companies," and provided medical devices and hardware, including implants, to hospitals and surgeons. (Compl. ¶ 5.) Though originally sued as two entities by the names set forth, defendant Zimmer, Inc. has appeared in the action as the true defendant, asserting it was erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. The Court describes the relevant allegations of the complaint as against "Zimmer."

Plaintiff alleges she underwent a total knee replacement performed by defendant Wendy Wong, M.D. at Golden State Orthopedics in Walnut Creek. (Compl. ¶ 11.) She alleges that in addition to placing a Zimmer knee replacement implant, Dr. Wong placed a Zimmer Persona IQ implant without her consent. (Compl. ¶ 11.) Plaintiff further alleges as to Zimmer that after the surgery, she was contacted by a Zimmer representative who told her that "her surgeon had enrolled her in Mymobility," which she alleges is Zimmer's patient care app, and that during the surgery, Dr. Wong had implanted an electronic device with a battery and sensors for use with the app. (Compl. ¶ 13.)

Plaintiff alleges she has been harmed by the implantation of the Persona IQ device, that she has suffered injury to her physical and mental health, as well as pain and suffering. (Compl. ¶¶ 14, 15.) As relevant to the Zimmer demurrer, Plaintiff alleges causes of action against Zimmer for failure to obtain informed consent (2nd C/A), medical battery (3rd C/A), and invasion of privacy under the common law and Civil Code section 56.10 (4th C/A). Plaintiff has dismissed Zimmer from the failure to obtain informed consent cause of action (2nd C/A). (See Req. for Dism. filed 2/11/2026.)

Standards Governing Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (See also *City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court gives the complaint "a reasonable